

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Juan Arango	Team: Squad #15	CCRB Case #: 202401393	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 01/19/2024 11:00 PM	Location of Incident: 14th Street/Eighth Avenue subway station	18 Mo. SOL 7/19/2025	Precinct: 06
Date/Time CV Reported Thu, 02/08/2024 6:06 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 02/08/2024 6:06 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Md Jamil	08921	972710	TB SOD
2. PO Koshy Samuel	12925	974509	TB SOD
3. PO Md Rhaman	06169	968738	TB TPF

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Md Islam	16300	974935	TB SOD

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Koshy Samuel	Abuse: Police Officer Koshy Samuel threatened to arrest § 87(2)(b)	A . Within NYPD Guidelines
B . PO Md Jamil	Abuse: Police Officer Md Jamil threatened to arrest § 87(2)(b)	B . Within NYPD Guidelines
C . PO Koshy Samuel	Force: Police Officer Koshy Samuel used physical force against § 87(2)(b)	C . Unfounded
D . PO Md Rhaman	Abuse: Police Officer Md Rhaman inappropriately touched § 87(2)(b)	D . Unfounded

Case Summary

On February 8, 2024, § 87(2)(b) filed this complaint online with the CCRB.

On January 19, 2024, at approximately 11:15 p.m., § 87(2)(b) got off the C train at the 14th Street – Eighth Avenue subway station in Manhattan. § 87(2)(b) was carrying a skateboard and was accompanied by an unleashed dog. PO Md Jamil and PO Koshy Samuel of the Transit Bureau stopped § 87(2)(b) to issue him a summons for § 87(2)(b). PO Jamil and PO Samuel threatened to arrest § 87(2)(b) (**Allegations A and B – Abuse of Authority: Within NYPD Guidelines**). After § 87(2)(b) was issued a summons, PO Samuel allegedly pushed him (**Allegation C – Force: Unfounded**). As § 87(2)(b) was leaving the train station, PO Rhaman allegedly slapped § 87(2)(b) on the buttocks (**Allegation D – Sexual Misconduct: Unfounded**). § 87(2)(b) did not return and was not arrested.

The investigation obtained video footage of this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Koshy Samuel threatened to arrest § 87(2)(b).

Allegation (B) Abuse of Authority: Police Officer Md Jamil threatened to arrest § 87(2)(b).

On January 19, 2024, at approximately 11:15 p.m., § 87(2)(b) alighted from a C train at the 14th Street – Eighth Avenue subway station in Manhattan. § 87(2)(b) stated (**BR1**) he had a leash for his dog but chose not to use it. § 87(2)(b) dropped his skateboard onto the ground on the mezzanine level and rode it for several feet. The skateboard made a loud noise when he dropped it to the ground. § 87(2)(b) saw PO Jamil and PO Samuel standing together in the distance on the mezzanine level. The officers approached § 87(2)(b) and asked for identification. In the ensuing argument over whether § 87(2)(b) had violated MTA rules, PO Jamil and PO Samuel both threatened to arrest § 87(2)(b) for various reasons. Over the course of several minutes in their interaction, they threatened to arrest him if he failed to provide identification, if he failed to provide his name truthfully, if he continued to ask questions, and if he returned to the subway station. § 87(2)(b) estimated that he was threatened with arrest approximately 25 times.

PO Samuel (**BR2**) and PO Jamil's BWC (**BR3**) videos both recorded the interaction. PO Samuel identified himself by name and asks § 87(2)(b) for identification. § 87(2)(b) states that he does not have identification. PO Samuel and PO Jamil both inform § 87(2)(b) that he can be arrested. At 1:40 in PO Samuel's BWC, PO Samuel states, "So you don't have ID, this is how it works. You actually have to come with us." At 2:24, PO Jamil states, "If you don't show ID, I'll bring my handcuff, I'll bring you to the precinct. OK?" At 3:23 mark, § 87(2)(b) is about to spell out his name to PO Jamil and PO Samuel tells § 87(2)(b) "If you give me the wrong information, that will be a separate charge." At the 4:45 mark, § 87(2)(b) provides his name and PO Samuel asks § 87(2)(b) to provide his address. § 87(2)(b) says that the officers do not need his address. PO Samuel tells § 87(2)(b) that he is not in charge and that he is not providing his ID. PO Samuel asks § 87(2)(b) "Do you wanna go to the Precinct?" § 87(2)(b) asks, "Why?" PO Samuel says, "You are not complying. All you do is giving us is [sic] attitude." At the 5:54 mark, PO Samuel asks § 87(2)(b) for his address and § 87(2)(b) provides it verbally. § 87(2)(b) then continues stating that he is telling the officers his rights. PO Samuel says, "I'm doing you a favor not to bring you to the Precinct."

say anything regarding any errors on the summons. Beginning at the 16:35 mark, § 87(2)(b) walks with PO Jamil and PO Samuel towards the exit. PO Samuel does not push § 87(2)(b) at any point. At the 16:59 mark, while walking, § 87(2)(b) pauses briefly to turn to PO Jamil, and PO Samuel puts his arms out to stop § 87(2)(b) but does not push him or make any substantial physical contact. In response, § 87(2)(b) says, “Don’t touch.” They continue walking while § 87(2)(b) repeatedly asks where the rules of the MTA are posted. After they exit the turnstiles, PO Jamil points towards a sign posted on the wall and they pause as § 87(2)(b) takes a photograph. PO Md Rahman and PO Md Islam approach at around this time. After he takes a photograph, PO Samuel and PO Jamil tell § 87(2)(b) to leave. § 87(2)(b) walks out of the station at the end of the video concluding at the 18 minute mark. No one slaps or makes any physical contact with § 87(2)(b). § 87(2)(b) does not say, “Are you kidding me?” to anyone, nor does he accuse anyone of slapping him on the buttocks.

§ 87(2)(g) It is therefore recommended that **Allegations C and D** be closed as **Unfounded**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to 18 CCRB complaints in which he was named as a victim (BR7):
 - § 87(2)(b)
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§ 87(2)(b)

- PO Jamil has been a member-of-service for three years and this is the first CCRB complaint to which he has been a subject.
- PO Samuel has been a member-of-service for two years and has been the subject in two CCRB complaints and three allegations, none of which were substantiated.
- PO Rhaman has been a member-of-service for five years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil, and Criminal Histories

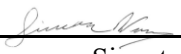
- This complaint was not suitable for mediation.
- A Notice of Claim inquiry was sent on October 25, 2024. The results will be added to this case file upon receipt (**BR8**).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(g)

Squad No.: 15

Investigator:	Owen Godshall	SI Owen Godshall	10/25/2024
	Signature	Print Title & Name	Date

Squad Leader:		IM Simon Wang	10/25/24
	Signature	Print Title & Name	Date

Reviewer:			
	Signature	Print Title & Name	Date